

More important, the relief sought here—actual and punitive damages—is the traditional form of relief offered in the courts of law.¹¹

We need not, and do not, go so far as to say that any award of monetary relief must necessarily be “legal” relief. See, e. g., *Mitchell v. DeMario Jewelry, Inc.*, 361 U. S. 288 (1960); *Porter v. Warner Holding Co.*, 328 U. S. 395 (1946).¹² A comparison of Title VIII with Title VII of the Civil Rights Act of 1964, where the courts of appeals have held that jury trial is not required in an action for reinstatement and backpay,¹³ is

fiction, a duty enforceable in a damages action triable to a jury, to those who rent apartments on a long-term basis. See 467 F. 2d, at 1117. An action to redress racial discrimination may also be likened to an action for defamation or intentional infliction of mental distress. Indeed, the contours of the latter tort are still developing, and it has been suggested that “under the logic of the common law development of a law of insult and indignity, racial discrimination might be treated as a dignitary tort.” C. Gregory & H. Kalven, *Cases and Materials on Torts* 961 (2d ed. 1969).

¹¹ The procedural history of this case generated some question in the courts below as to whether the action should be viewed as one for damages and injunctive relief, or as one for damages alone, for purposes of analyzing the jury trial issue. The Court of Appeals concluded that the right to jury trial was properly tested by the relief sought in the complaint and not by the claims remaining at the time of trial. 467 F. 2d, at 1118–1119. We need express no view on this question. If the action is properly viewed as one for damages only, our conclusion that this is a legal claim obviously requires a jury trial on demand. And if this legal claim is joined with an equitable claim, the right to jury trial on the legal claim, including all issues common to both claims, remains intact. The right cannot be abridged by characterizing the legal claim as “incidental” to the equitable relief sought. *Beacon Theatres, Inc. v. Westover*, 359 U. S. 500 (1959); *Dairy Queen, Inc. v. Wood*, 369 U. S. 469, 470–473 (1962).

¹² See also *Swofford v. B&W, Inc.*, 336 F. 2d 406, 414 (CA5 1964).

¹³ *Johnson v. Georgia Highway Express, Inc.*, 417 F. 2d 1122, 1125 (CA5 1969); *Robinson v. Lorillard Corp.*, 444 F. 2d 791, 802 (CA4), cert. dismissed under Rule 60, 404 U. S. 1006 (1971); cf. *McFerren*